IN THE DISTRICT COURT HELD AT OSINO ON TUESDAY THE 6TH MAY 2025

BEFORE HIS WORSHIP AYAGIBA SALIFU BUGRI, DISTRICT MAGISTRATE

CASE NO... A1/08/24

FANTEAKWA SOUTH DISTRICT ASSEMBLY

PER THE DISTRICT ENGINEER ..... PLAINTIFF

OF OSINO

VSS

BRIGHT RAHMAN ..... DEFENDANT

OF OSINO

JUDGEMENT

RELIEFS SOUGHT

1. Ejection of Defendant for trespassing into Plaintiff's land.
2. Demolition of building structure on Plaintiff's land for building without building permit.
3. Cost.

BRIEF FACTS:

Plaintiff is the District Assembly at Osino whilst defendant is a resident of Osino. Plaintiff acquired a parcel of land from the chief of Osino to construct a toilet facility under the Ghana first Project. Defendant has encroached part of the plaintiff's land whilst the toilet facility is under construction. Defendant is constructing a residential building on the encroached part of plaintiff's land without a building permit. Defendant has refused to settle the matter despite several attempts at amicable settlement.

Per the plaintiff's witness statement, the said parcel of land was acquired in 2019 from the Osino chief for the construction of a 14-seat toilet facility under the Ghana First Project. The size of the parcel of land granted was 0.10 acre of land. PW1 corroborated plaintiffs' evidence to the extent that plaintiff approached him for a parcel of land to construct the aforementioned facility, and he lead plaintiff to the chief of Osino for allocation of land for the purpose. Consequently, the plot allocation committee allocated the parcel of land under litigation with the aforementioned dimensions to the plaintiff. According to PW2 he was the project manager of "Hope Family Limited", the company that was awarded the contract to construct the toilet facility. The witness's his company cleared the land under litigation for construction of the place of convenience on 11th March 2019. PW3's evidence per his witness statement suggests that an electricity pole served as the boundary between the plaintiff and defendant.

In his defense the defendant maintained that the land under litigation is his bona-fide property that he acquired from one Mr. Yaw Amu, the head of the family that owned the land under litigation. Defendant adds that he acquired the land in 2020 and witnessed by the chief linguist and an unnamed individual at the chief's Palace, plot allocation committee chairman and his former girlfriend. According to the defendant his land measures 62ft by 52 ft and is bounded with an old public place of convenience at the rear and new place of convenience to the left, a tree and two separate roads. Defendant maintains that he has not encroached plaintiffs land but within the dimensions aforementioned as sold to him.

Defendant says somewhere in 2022, the plot allocation committee chairman suggested to him that a portion of his land will be given to plaintiff and the old place of convenience demolished to compensate for his loss, but he rejected the proposal. Defendant believes he is being victimized for rejecting the offer. Defendant denies that the electricity pole is the boundary between his land and plaintiff's land.

DW1 admitted that he is the current head of family of the family that own the land under litigation. He corroborated the defendant's evidence that the transaction was ratified by the chief linguist of the Osino chief, the plot allocation chairman and other witnesses from the Palace. DW1 says the land under litigation was granted to a developer without their consent, hence they opposed the construction of the new toilet facility, notwithstanding an amount of GHC2000 offered as compensation and an apology.

ISSUES FOR DETERMINATION

1. *Whether or not disposition/conveyance made to the plaintiff was valid*
2. *Whether or not DW1 acquiesced the conveyance made to plaintiff*

There is no doubt per the evidences adduced that, the misunderstanding pertaining to the instant suit is about boundary and the validity of the conveyance to either party. Under customary land law, the disposition or conveyance of land to a third party whether by purchase or gift is evidenced by witnesses, especially by adjoining land owners and, relatives or representatives of the grantee and the grantor before any severance of the land is made. Of course, this act of publicity is essential in any customary land law conveyance, in order that the parties are ad idem on the boundary marks and to know the adjoining land owners. Any misunderstanding about the boundaries are resolved to avoid or prevent multiplicity of litigation.

However, under any common law, the conveyance is made by measuring the land and indicating the dimensions of the land. The boundaries are indicated on the document and mostly accompanied by a site plan.

In the instant case, it is evident from the evidences adduced that the respective grants were initially customary grants and the parties formalized the grants by documenting same. It is not as if the land under litigation had already been demarcated as serviced plots and granted with specific dimensions.

The evidence suggests that the area of the land under litigation was previously outskirt land that DW1's family granted/released for the construction of a community place of convenience commonly referred to as public toilet. Currently the town has extended to the outskirt farmlands that have been acquired for residential settlements as in the case of defendant. In the case of the plaintiff, the mode of acquisition of the land under litigation is a grant made by the Osino chief, whilst in the case of the defendant it was an outright purchase from DW1. Defendant's purchase was approved and formalized by the Osino chief, through his land allocation committee.

It is trite in a civil case that, he who alleges has the burden to prove the allegation. The duty of a court of law is to weigh the probative weights of the evidences adduced and determine the same on the balance of probabilities of the evidence before it, **per section 12(1) and (2) of Act 323.**

Thus, the onus is on the plaintiff who has filed the instant suit to prove that the defendant has encroached the land intended for the construction of the public place of convenience.

In other words, in an action for declaration of title to land the onus of proof lies heavily on the plaintiff to establish his title. This has been stressed in several decisions**. In Rufai v. Ricketts Webber C.J. said:**

"This is a claim for a declaration of title to land and the onus of proving ownership is on the plaintiff. The result depends on the strength of the plaintiff's and not on the weakness of the defendant's case."

In Kuma v. Kuma Yates Ag. C.J. made a similar statement: " In an action for Declaration of Title the onus of proof is upon the plaintiff to show a clear title." **In Renner v. Annan Sir George Deane C.J. said;**

"The plaintiffs would in fact have to prove that they were owners of the close to enable them to succeed, and they can only succeed by the strength of their title and not by weakness of the defendants'."

Webber C.J. in another case had the opportunity to repeat what he had said earlier: "The onus lies on the plaintiff to satisfy the Court that he is entitled on the evidence brought by him to a declaration of title. The plaintiff in this case must rely on the strength of his own case and not on the weakness of the defendant's case. If this onus is not discharged, the weakness of the defendant's case will not help him and the proper judgment is for the defendant."

It is therefore settled law that the onus is on the plaintiff. Hence in **Kuma II v. Enyimadu Harragin C.J. remarked** "In this case the appellant asked for a declaration of title in respect of certain land.

"It should by this time be more or less universally known that, in claims of this sort, the burden of proof rests heavily on the plaintiff."

In Mensah v Ahadjo [1961] GLR296-301; Held:

(2) where a defendant is in possession of land, a plaintiff who sues in trespass must prove that he has a better title than that of the defendant

In Yormewu v Awute and others [1987-88] 1GLR 9-19, it was held;

2) The plaintiff's claim was founded in trespass which was in law a violation of his possessory rights. And since he had admitted that the defendants had land adjoining to his, in order to succeed it was necessary to have described the trespassed area and the area in his possession with clarity. On the evidence the plaintiff only learnt the identity of his boundary owners on commencement of the action but had not ascertained their boundaries. He therefore did not know his true boundary owners and the extent of their lands. Besides, he had admitted that he did not know the dimension of the land between him and the defendants. Consequently, he failed the acid test for determining the proof required in trespass cases in that a surveyor looking at the record could not produce a plan from it of either the whole land claimed by him or the alleged area of trespass. The plaintiff's evidence therefore did not relate to any particular piece of land which could clearly be ascertained and in respect of which damages might be awarded in his favor.

(3) It was settled law that when at the close of a case the judge came to the conclusion that the plaintiff's case was weak and that of the defendant's too was weak, the judge could not prefer the plaintiff's weak case to that of the defendant and it would be wrong to grant to the plaintiff the reliefs he sought. Where the defendant did not call any evidence at all the position would not be different unless there was a counterclaim. In which case, the evidence which would be require from the defendant, would be the evidence to establish the counterclaim and not evidence in rebuttal of the plaintiff's claim.

In Awuah v Adututu and Another [1987-88] 1GLR191-207

Held, allowing the appeal:

(3) Documents which were prepared after a grant according to custom, such as exhibit C, served merely as documentary evidence of the grant and did not alter the customary nature of the transaction.

(4) The estate that the plaintiff acquired in that portion of stool land granted could be described as usufructuary, possessory or determinable title and was a specie of ownership co-existent and simultaneous with the stool's absolute ownership. The usufructuary was regarded as owner of the area of land reduced into his possession and he could alienate voluntarily to a fellow subject or involuntarily to a judgment creditor without the consent of the stool. There was practically no limitation over the right to alienate that usufructuary title and so long as he recognized the absolute title of the stool, it could only be determined on an express abandonment or failure of his heirs. Neither could the stool divest the usufructuary of his title by alienating it to another without his consent and concurrence. The usufructuary title which he acquired placed him in the same position as a subject of the stool except that in the case of farming land as well as building land the title of a stranger-grantee was limited to a well-defined area demarcated and granted to him, whereas the subject of the stool was not so limited to the area he could occupy. Consequently, the subject of the stool or a stranger-grantee of the stool could maintain an action against even the stool in defense of the usufructuary title and might impeach any disposition of such interest effected without his consent in favor of a third party.

Under customary land law disposition, ropes are used to measure land in the presence of witnesses. Trees that can withstand the vagaries of the weather such as 'ntome' trees which are common within the jurisdiction are also used as boundary marks. The presence of adjoining land owners is however paramount.

Plaintiff's reliance of an electric pole as boundary mark is flawed to the extent that it is not in evidence when the said pole was erected. Moreover, a pole can only serve as a temporal boundary for a new grant/disposition. Boundary pillars are sunk in addition to temporal boundary marks at corners of the land to serve as more permanent boundary marks. Therefore, the defendant's reliance of a tree as a boundary mark is more credible.

The fact that DW1 is the landlord of the land under litigation has not been denied. As is the case within the jurisdiction of this court including Osino lands, which the instant court has taken Judicial notice of, all lands belong to the Okye-Hene, and the subjects hold the lands as usufructs.

Thus, a usufruct can grant part of the land that he occupies to third party or stranger, but with the approval of the stool i.e. Osino chief or Palace in order for the disposition to be complete and valid. On the other hand, the stool cannot make a disposition of land possessed by a usufruct to a stranger or third party without the consent of the usufruct. The usufruct can take an action against the stool where there is a breach of this consent.

It is obvious that as far as there is no litigation on the land, the Palace assumes it's a valid grant and approves without actually conducting any reasonable due diligence. Of course, the stool may have stool lands which it can make a disposition, but where the interest lies in land occupied and controlled by a usufruct or families the consent of those families must be sought before a disposition is made.

Therefore, I give credence to DW1's testimony that when his family opposed the construction of the new public place of convenience, because the land was allocated to the plaintiff without their consent, attempts were made to compensate the family with GHC2000 and an apology. The evidence further suggests that the land on which the new place of convenience is situated and close to the old public place of convenience.

In the case of the plaintiff, he did not adduce evidence of the boundaries of the old public place of convenience, except a site plan was constructed following the approval of the Osino chief of the site for the construction of the new structure. Obviously, since the new construction was by a contractor, it was imperative that all formalities for the award of the contract are met including a site plan indicating the extent of the land to be worked on.

On the other hand, DW1's evidence that the Osino chief did not seek the consent of the family before allocating the plot for the new is somehow tenable to the extent that the Chiefs allocation is not a new grant but supposedly on land already occupied by an old structure.

The flaw in the approval by the chief was that the dimensions of the land on which the old structure stood was not documented or formalized after the customary grant years ago. On the other hand, the old disposition being a customary grant, the boundary marks were not indicated or not in evidence before this court.

In the absence of evidence of the size and boundaries of the previous disposition, evidence of witnesses of that grant or disposition is imperative to determine whether or not defendant has trespassed plaintiff's land.

Additionally, plaintiff has not adduced either documentary or testamentary evidence about the size and dimensions of the original grant, except the site plan constructed for

the purpose of awarding the contract for the new structure. Even though plaintiff is claiming title to the land under litigation through the Osino stool, the stool has not adduced any evidence as stated above to give validity to the dimensions relied on by plaintiff even though it testified on behalf of plaintiff.

The court has no doubt of plaintiff's evidence that the parcel of land under litigation was granted in 2019 and clearance of same for the intended construction started almost immediately. Indeed, the evidence of site plan and letters per exhibits 'A, B, C, D' prove so, as against defendants purchase in 2020, and formalized the purchase in 2022. On the face of the evidence, plaintiff is the first in time to have any intercourse with the land. However, to the extent that the disposition was invalid, it does not inure to the benefit of plaintiff.

It is trite that a grantee cannot have a better title to land or estate than his grantor. The plaintiff ought to demonstrate by evidence that the stool had a good or better title of the land in order to make a valid disposition of same. That burden has not been discharged by the plaintiff to the extent that DW1's claim of the land has not been rebutted or denied by the stool that testified on behalf of plaintiff.

Plaintiff's witnesses are only witnesses to the fact that, land was allocated for the construction of a new public toilet, and clearance of the land for same. Documentary evidence of letters of introduction and award of contract are not evidence of a valid grant and ownership of land. Evidence of a site plan constructed in 2019 and the dimensions or size of the land is not evidence of a valid disposition by the stool.

The fact of a valid grant must however be determined as a matter of fact, which has not been discharged by the plaintiff. The fact of a site plan does not oust or invalidate customary disposition made years ago.

To give validity to a site plan it must be one deposed to by the vendor or grantor with evidence of his signature or mark for a presumption of a valid grant.

It is not uncommon for a town to expand outskirt lands which used to be farmlands. Due to the expansion these farm lands are sold for residential or developmental purposes for the benefit of the community. However, in such cases the occupants of such farm or outskirt lands are compensated to vacate release those lands.

In the instant case, the evidence suggests that the land surrounding the old public toilet has been sold to residential developers. Hence, it is obvious that the defendant acquired land from DW1 Which is close to the old toilet facility, hence the dispute over boundary and trespass.

Thus, in the opinion of the court unless it is determined by evidence that a buffer land was reserved for future expansion or for any other reason, DW1 being the landlord reserved the exclusive right to sell the surrounding land to whatever extent of his possession.

Accordingly, it was imperative that the stool did due diligence of the old site to ascertain its conduciveness to accommodate any expansion of and construction of a new structure before granting same to plaintiff.

In the instant case, to the extent that stool did not deny or rebut DW1's testimony that he rejected the apology and compensation from the Osino chief's Palace, it implied that the stool acknowledged its mistake and attempted to rectify it. Had DW1 accepted the apology and compensation and regularized the disposition by the stool, it would have validated the plaintiff's claim.

Thus, the disposition by the stool beyond the original disposition for the construction of the old public place of convenience, in addition to any buffer that has been breached is invalid in the absence of consent by DW1.

It is also trite law that where a person acquiesce an act, he is estopped from making any claims to it. In other words, where DW1 saw an act being perpetrated on his family land and remained quiet about it, there is a presumption that he has decided to waive his rights. It is evident that having sold land to defendant, it was defendant's obligation to take an action if his rights over the land is challenged under any circumstance. In this case, the defendant could have joined DW1 as co-defendant but he chose to call him as a witness.

In the instant case the evidence does not suggest that DW1 knew about the construction of the new toilet and remained silent about it. PW1's evidence is that when he was invited by plaintiff to locate the site for the construction of the new place of convenience, he first contacted the Osino chief who indicated that the project be sited on the current land under litigation which is close to the old public place of convenience. It is obvious that the stool presumed that since there was an existing facility on DW1's land, there was no need to seek the consent of DW1 since it is an existing disposition made years ago. As already stated, because the dimensions of the old disposition is not on record or known except by the grantor, and surrounding lands having been sold, has affected the obviously bigger new structure and by extension trespassed a surrounding land that has been purchased by the defendant.

Accordingly, after evaluating and analyzing the evidences adduced before this court, I determine that the stool did not deliberately approve land for the defendant, knowing that it had been encumbered by a disposition made to plaintiff.

Additionally, the boundaries of the old grant by the landlord i.e. DW1's family through the head of family at the time was is not in evidence.

That, the site plan of plaintiff cannot be a valid one in the absence of evidence of a valid site plan of the previous grant or any evidence of same.

That under the circumstances the evidence of the customary law disposition by DW1 is more probable than the disposition by the stool.

Consequently, it is the determination by this court that the defendant has not trespassed the plaintiffs land and order for ejection will not be accorded the plaintiff or any award of damages thereof.

Accordingly, the reliefs sought by plaintiff are dismissed.

-SGD-

HIS WORSHIP

AYAGIBA SALIFU BUGRI,

MAGISTRATE